

APR 30 1996



U.S. Department
of Transportation

Research and
Special Programs
Administration

400 Seventh Street, S.W.
Washington, D.C. 20590

DOT-E 11689

EXPIRATION DATE: May 15, 1996 or upon
completion of one shipment whichever
occurs earlier.

(FOR RENEWAL, SEE 49 CFR SECTION 107.105)

1. GRANTEE: Chem Tech Systems
Los Angeles, CA
2. PURPOSE AND LIMITATION: This emergency exemption authorizes the transportation in commerce of Waste sulfur trioxide, uninhibited, Class 8 material, in a non-DOT specification metal drum overpacked in an 95 gallon capacity UN1H2. The UN1H2 will be overpacked in a 600 gallon capacity salvage drum filled with vermiculite. This exemption provides no relief from any regulation other than as specifically stated herein.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR 173.227.
5. BASIS: This emergency exemption is based on the application of Chem Tech Systems dated April 29, 1996, submitted in accordance with 49 CFR 107.113 and a determination that it is necessary to protect life and property.
6. HAZARDOUS MATERIALS (49 CFR 172.101):

Hazardous materials description -- proper shipping name	Hazard Class/ Division	Identi- fication Number	Packing Group
Waste sulfur trioxide, uninhibited	8	UN1829	I Hazard Zone B

7. PACKAGING AND SAFETY CONTROL MEASURES:

Packaging is a non-DOT specification 55-gallon metal drum overpacked in a 95 gallon capacity UN1H2 which is overpacked in a 600 gallon salvage drum filled with vermiculite.

8. SPECIAL PROVISIONS:

a. The shipment is to originate at Los Angeles, California destined for Houston, Texas transported by Treatment One.

b. The drum must be segregated from other cargo and secured to prevent movement during transportation.

9. MODES OF TRANSPORTATION AUTHORIZED: Motor vehicle.10. MODAL REQUIREMENTS:

A copy of this exemption must be carried aboard the motor vehicle used to transport the drum covered by this exemption.

11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this exemption and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. Section 5101 et seq:

- o All terms and conditions prescribed in this exemption and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
- o Registration required by 49 CFR 107.601 et seq., when applicable.

No person may use or apply this exemption, including display of its number, when the exemption has expired or is otherwise no longer in effect.

12. REPORTING REQUIREMENTS: The carrier is required to report any incident involving loss of packaging contents or packaging failure to the Associate Administrator for Hazardous Materials Safety (AAHMS) as soon as practicable. (49 CFR 171.15 and 171.16 apply to any activity undertaken under the authority of this exemption.) In addition, the holder(s) of this exemption must inform the AAHMS, in writing, of any incidents involving the package and shipments made under the terms of this exemption.

Issued at Washington, D.C.:



Alan I. Roberts
Associate Administrator
for Hazardous Materials Safety

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(DATE)

Address all inquiries to: Associate Administrator for Hazardous
Materials Safety, Research and Special Programs Administration,
Department of Transportation, Washington, D.C. 20590.
Attention: DHM-31.

The original of this exemption is on file at the above office.
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